

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Sudhir Dixit, learned counsel for the petitioners, Sri S.T. Tripathi, learned counsel for respondent nos.2 to 6 and Sri Manoj Kumar Srivastava, learned counsel for respondent no.7.

Learned counsel for the petitioners prays for and is allowed a weeks' time for filing supplementary affidavit annexing the indemnity bond and other relevant documents. He further prays that the electricity connection be not disconnected till the next date as the petitioners are living with their children and which would cause great hardship to them and the action which has been taken by the Power Corporation is in collusion with respondent no.6 who is a builder with whom the petitioners have a dispute with respect to the flat in question and he himself is facing a criminal prosecution at the hands of the petitioners.

List this case on 19.8.2019 in the additional cause list.

Till the next date of listing no coercive action shall be taken against the petitioners in pursuance of the notice dated 2.8.2019 passed by Executive Engineer, Electricity Urban Distribution Division IInd, Dakshinachal Vidhyut Vitran Nigam Limited, Aligarh.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 13.8.2019

Deepika

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Supplementary affidavit filed today by learned counsel for the petitioners is taken on record.

Heard Sri Sudhir Dixit, learned counsel for the petitioners, Sri S.K. Tripathi, learned counsel appearing on behalf of respondent nos. 2 to 6, Sri M.K. Srivastava, learned counsel for the respondent no. 7, learned Standing Counsel appearing for the State-respondents and perused the record.

By means of present petition, the petitioners have prayed for quashing the impugned order/notice dated 2.8.2019 passed by respondent no. 5 Executive Engineer, Electricity Urban Distribution Division-II, Dakshnachal Vidhyut Vitran Nigam Limited, Aligarh.

The contention advanced by learned counsel for the petitioners is that they having obtained the electricity connection on the basis of the indemnity bond furnished by them to the department concerned as they happen to be the occupier of the building under some agreement reached between the petitioners and the 7th respondent, which has ultimately come to be disputed and the matter is engaging attention of this Court in the pending F.A.F.O. No. 380 of 2018, there is no occasion to question electricity connection, the argument, therefore, is that even if an occupier is entitled to have electricity connection on the basis of indemnity bond as prescribed in annexure- 4.2 of the U.P. Electricity Supply Code, 2005, the electricity department cannot raise objection and cannot direct for disconnection of the electricity on the ground that the petitioner has failed to produce any document of title in respect of the premises in question. Learned counsel for the petitioners has relied upon a judgment of this Court in the case of ***Sameera Khan vs. U.P. Power Corporation Limited Lucknow & others*** reported in ***2014 (6) ADJ 672***.

In view of the above, arguments so advanced by learned counsel for the petitioners prima facie appear to have substance and the matter requires consideration.

All the respondents are granted four weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks' thereafter.

List after expiry of the aforesaid period.

In the meanwhile, until further orders of the Court, the effect and operation of the notice/order dated 2nd August, 2019 passed by respondent

no. 5 shall remain stayed.

It is provided that no coercive measures shall be taken against the petitioners by respondent no. 2 so long as the petitioners continue to pay regularly the electricity bills as is raised from time to time by the electricity department against the consumption.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 19.8.2019

Shiraz

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Sri Sudhir Dixit, learned counsel for the petitioners is present along with Sri Shrawan Kumar Tripathi, learned counsel for the respondent No.2.

Sri Shrawan Kumar Tripathi, learned counsel for the respondent No.2 prays for and is allowed 10 days and no more time to file counter affidavit.

Sri Sanjay Tiwari, learned Standing Counsel is also directed to file counter affidavit within the aforesaid period.

List this matter on 14th November, 2019 showing the name of Sri Shrawan Kumar Tripathi as counsel for the respondent No.2.

Order Date :- 17.10.2019

Atmesh

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Counter affidavits filed today on behalf of respondent nos. 2 to 6 and respondent no. 7 are taken on record.

Learned counsel for the petitioner prays for and is allowed two week's and no more time to file rejoinder affidavit.

List thereafter.

Order Date :- 14.11.2019

Sanjeev

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam
Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

List this matter after two weeks.

Order Date :- 28.11.2019

Atmesh

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Samit Gopal, J.

The two rejoinder affidavits have been filed by the learned counsel for the petitioners is taken on record.

Sri Shrawan Kumar Tripathi appearing on behalf of respondent Nos. 2 to 6 has sent illness slip.

List the matter after three weeks.

Order Date :- 12.12.2019

AS Rathor

(Samit Gopal, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Learned counsel for the parties are present and pleadings have been exchanged between them.

As prayed, list this case in the next cause list.

Order Date :- 2.1.2020

Sanjeev

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Learned counsel for the parties are present.

The pleadings between the parties have been exchanged.

List the matter after six weeks for final hearing.

Order Date :- 3.2.2020

VKG

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 40

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam
Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Manoj Misra, J.

Hon'ble Rohit Ranjan Agarwal, J.

Parties have exchanged their affidavits.

On the joint request of learned counsel for the parties, put up on
26.03.2021 for final disposal.

Order Date :- 19.3.2021

V.S. Singh

Court No. - 40

Case :- WRIT - C No. - 26583 of 2019

Petitioner :- Mukesh Kumar Mittal And 3 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Dixit, Anupam Shyam Dwivedi, Smt. Richa Dixita

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Manoj Kumar Srivastava, Shrawan Kumar Tripathi

Hon'ble Manoj Misra, J.

Hon'ble Rohit Ranjan Agarwal, J.

List on 22.04.2021.

Order Date :- 26.3.2021

V.S. Singh